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Athens, 27-12-2024
Protocol No.: 3692

DECISION 54/2024

The Hellenic Data Protection Authority convened at the invitation of the President in a session on Tuesday, 29-06-2023 at 10:00, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, Konstantinos Lamprinouidakis, Charalampos Anthopoulos, Aikaterini Iliadou, as well as Christos Kalloniatis and Grigorios Tsolias, as rapporteurs. Present, without voting rights, were Stefania Plota, special scientist - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With the complaints numbered G/INS/7633/06-11-2020 and G/INS/1538/03-03-2021 submitted to the Hellenic Data Protection Authority (hereinafter referred to as the "Authority"), A (hereinafter referred to as the "complainant") complains about the company Google LLC (hereinafter referred to as the "company") for the non-satisfaction of the right to erasure (right to be forgotten). Specifically, the complainant states in the first complaint under consideration that he contacted the company on ... submitting requests numbered ..., ..., ..., ..., ..., ..., ..., ..., ..., ..., ..., exercising the right to be forgotten and requesting the deletion of the links mentioned in these requests that appear in the results of the Google search engine based on his name, because "the search engine results are not updated, as they only refer to the personal data of the complainant's referral and temporary detention in the year ... and the year ..., but do not complete the reference with the outcome of the criminal case and the mention of the court decision of ...". The transmission of outdated information thus contravenes Article 5(1)(d) of the General Data Protection Regulation, which imposes the updating of data, which has not been carried out, thus violating the presumption of innocence of the complainant. Therefore, the retransmission as a "search result" of a personal data (prosecution and detention) that is not updated with the outcome (court decision of acquittal of the complainant) is an illegal act, and for this reason, Google is obliged to delete from the results the specific websites that were pointed out to it, in accordance with Article 17 of the General Data Protection Regulation." The company responded, as stated by the complainant, to the above requests via electronic correspondence, as follows: i. on ... regarding requests numbered ..., ..., which concerned six (6) search engine results, for which it states that "It appears that the information you want Google to remove from the results list concerns criminal offenses. Based on the information we have at our disposal, we must conclude that this information is neither inaccurate nor outdated," ii. on ... – ... regarding requests ..., ..., ..., ..., ..., ..., for which the company states, "Having assessed the balancing of rights and interests concerning this specific content, including their relation to your professional life, Google has decided not to block this content. Currently, Google has decided not to take action on these URLs," and finally iii. on ... regarding requests ..., ..., ..., beyond the results mentioned in point (i), the company responded that "the highlighted websites are not being transmitted as search engine results or have already been withdrawn."

Subsequently, the complainant's attorney informed the Authority, on the one hand, with the electronic mail numbered G/INS/8578/14-12-2020 that "there has been partial compliance by the data controller. We await the final resolution of the case, following our communication with the Data Protection Officer. We kindly ask the Authority to wait for the expected development, as the issue may be resolved without the need for further action."

"your intervention is required" and on the other hand, with the letter no. Γ/ΕΙΣ/978/08-02-2021, that "the data controller partially satisfied the right to erasure for only some of the reported posts. Subsequently, on ..., the data subject submitted a new request for erasure for the posts that have not

been deleted. At the same time, the data subject added requests for erasure for other posts concerning him. However, the data controller has not yet responded to our new requests. We intend to address the Data Protection Officer of the data controller in writing again today." With the letter no. Γ/ΕΙΣ/1458/02-03-2021, the complainant states that the company informed him about the deletion of eighteen links resulting from the erasure requests he submitted, concluding that "he finds that the stipulated deadline of thirty (30) days for the satisfaction of his right to erasure ("right to be forgotten"), as provided by Article 12 of the General Regulation 2016/679 for the protection of personal data, was not adhered to. On the contrary, while the requests were initially rejected, subsequently, time exceeding thirty (30) days was needed following his address to the Data Protection Officer." Finally, regarding the unique link that the company did not delete, the complainant's attorney, in the email dated ..., stated that the response sent by the company was deemed satisfactory by the data subject. The Authority, in the context of examining the above complaint, summoned the companies Google LLC, as the operator of the Google search engine, and Google Hellas with the letter no. Γ/ΕΞΕ/1027/07-04-2021 to provide their views on the allegations. The company Google LLC responded to the Authority with the letter no. Γ/ΕΙΣ/2781/23-04-2021 with the attached documents, in which it stated the following: In response to the requests submitted to the company by the complainant on ..., it replied on the same day with the following text: "We have received your request. Your message is being processed, and we will evaluate your request as quickly as possible, depending on the volume of requests we have received. [...] Due to COVID-19 circumstances, we may need more time to respond to your request.

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We apologize for any inconvenience" and subsequently on ... and ..., it responded within a month to all of the complainant's requests, as it pointed out, analyzing the reasons for the rejection of each request. On ..., the complainant submitted a "Complaint before the Data Protection Officer of the company named Google LLC," partially modifying his requests and providing new information. Specifically: On one hand, the complainant completed his requests to also include the name AA in addition to the name A ("...among these results, there are also websites that refer nominally to the complainant, either with the surname 'A' or with the variation 'AA' to which it refers [...]"). On the other hand, he sent an excerpt from the decision no. ... of the Three-Member Criminal Court of Appeals of Athens, which states that "D) The criminal prosecution against the 2nd defendant A is definitively terminated due to statute of limitations for the fact that [...]", modifying the basis of the initial and already rejected requests for erasure in which he claimed that "...the court unanimously, following a concordant prosecutorial proposal, deemed the prosecution and the temporary detention of Mr. A illegal and beyond its authority," without even providing any evidence [...]. The company also states that following the evaluation of the modified requests of the complainant and the new information submitted on ..., it satisfied his requests regarding all links, except for one, as the information referred to therein is updated, and it informed him accordingly on Therefore, as the company argues, it responded to the complainant in a timely manner satisfying all of his requests, except for one, and this response was deemed satisfactory by the complainant based on what he stated to the Authority, and his complaint is without object and should be dismissed by the Authority. Regarding the reconsideration of the requests following the complainant's communication with the Data Processing Officer (hereinafter "DPO") of Google, the company states that "The complainant exercised the right to be forgotten arguing that the search results are inaccurate. On ..., he did not provide any information required to prove that the data is obviously inaccurate; therefore, his requests were rejected within a month of their submission. On ..., the complainant sent information to Google regarding the inaccuracy of the information listed in the links.

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information by modifying and clarifying its requests for the deletion of such information, which had previously been rejected. Following this, Google responded to the complainant within a month, satisfying all of their requests, except for one. Finally, in the said letter, the company also referred to the most recent requests from ... and ... sixty-two (62) deletion requests from the complainant, to which

the company responded on the same day to the complainant's legal representative, as stated in the following email message: "[...] We have received your request. Your message is being processed, and we will evaluate your request as quickly as possible, depending on the volume of requests we have received [...] Due to the impacts of COVID-19, we may need more time than usual to respond to your request. We apologize for the inconvenience." The company emphasizes that "in light of the above, it has timely informed the complainant that further time will be required to manage their requests in accordance with Article 12(3)(b) of the GDPR, taking into account the circumstances of the pandemic and the large number of requests from the complainant (a total of 62 new requests)" and regarding the substance of the requests that after evaluating the above requests, it will take measures to withdraw the links mentioned in the requests from the Google search engine results based on the complainant's name, except for one link, for which the conditions for deletion based on the claimed right to be forgotten are not met - with a relevant justification for the company's decision - and notes that it may take several hours to implement the above actions and that these actions will not lead to the withdrawal of the content in question from the internet.

The complainant, regarding the above memorandum from the complained company, which was communicated by the company to the complainant, submitted to the Authority the document no. G/EIS/2939/06-05-2022 raising the following issues: 1. With each electronically submitted deletion request, the company sends an automated email response stating that "due to COVID-19 circumstances, we may need more time to respond to your request," as a justification for the delay in fulfilling Google's obligations as a data controller that "has no basis in the GDPR or any other applicable legislation. Specifically, the response deadlines for data controllers under Article 12(3) are "without delay and in any case within one month of receipt of the request." Furthermore, the deadline may be extended by two additional months, but not "due to COVID-19," or any other pandemic incident, but only "taking into account the complexity of the request and the number of requests." Additionally, under the same provision, Google is obliged in the event of exceeding one month to comply with the third paragraph of paragraph 3, according to which "the data controller informs the data subject of the said extension within one month of receipt of the request, as well as the reasons for the delay." The company did not inform the applicant after the first 30 days had passed about the reasons it would invoke for the extension, nor about the fact that it did not have the court decision itself, as it now complains, and that it had a different interpretation of the Decision for which it now informs the complainant in the context of examining the complaint. Furthermore, the complainant states that "the company, as an American giant in the Internet space, employs thousands of workers, who during the pandemic work from home, as the entire service for receiving and examining deletion requests due to GDPR violations is conducted online and does not require the physical presence of Google employees for the timely and prompt processing of deletion requests." Therefore, according to the complainant, the invocation of COVID-19, apart from being legally unfounded, is also entirely irrelevant, and the Authority should determine that the automated acknowledgment of receipt sent by Google, with the unfounded, vague, and irrelevant reference to a possible delay due to COVID-19 does not constitute lawful fulfillment of Google's obligation, as a data controller, to inform the data subject regarding the use of the possibility of exceeding the legal deadline of 30 days. 2. The company states that the deletion requests were not complete, as the court decision itself, by which the data subject was acquitted of the charges, was not included. The company unfoundedly invokes

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this decision, as it is evident from a simple reading that the postings were not updated, meaning they were contrary to Article 5, paragraph 1 of the GDPR, as they referred to a criminal prosecution and pre-trial detention of the complainant ... years ago. "No court decision needed to be submitted for Google to identify this, as no court decision was submitted in the famous Google Spain case, which established that the mere passage of a long period of time from the adverse personal data of the foreclosure of a residence and the lack of its timeliness was sufficient to recognize the obligation of the data controller to assess the request for deletion under the then-applicable Directive 95/46." However, the fact that the court decision was not attached is due to the company because while "previously in the 'Request Form for the Removal of Personal Data – Removal under European Data Protection

Legislation' there was also a space for attaching documents, so that data subjects could provide as complete material as possible, this is no longer the case. ... in the online form for requesting the removal of personal data (accessible at the website: 'https://www.google.com/webmasters/tools/legal-removal-request?complaint_type=rtbf&visit_id=637530114519899199-3353308110&hl=en&rd=1'), there is absolutely no 'field' that allows for the attachment of files, such as a .pdf file with a court decision. Furthermore, the number of characters (!) that a justification text for the deletion request can extend to has been dramatically limited, as in the 'Reason for Removal' field, the reasoning can be elaborated with a text of up to 1,000 characters (letters). However, this is a limitation on the right to deletion (Article 17 GDPR) that ultimately does not allow the data subject to exercise the right in its entirety, so as to include the necessary documents but also to detail to Google the legality issues that necessitate the removal of the content, resulting in Google accepting requests that it then deems incomplete at its discretion, thus forcing the data subject to return through other means, such as addressing the Data Protection Officer to be able to submit a document or a more extensive justification of the deletion request. For

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these reasons, the Authority should dismiss as legally and substantively unfounded Google's claims that it allegedly did not have complete information from the outset to satisfy the deletion requests and should additionally compel Google to include in the online 'Request Form for the Removal of Personal Data – Removal under European Data Protection Legislation' a specific field for the attachment of files as well as to allow the submission of justification for the removal without restrictions on the number of words." 3. It would have no impact on the company's judgment if the excerpt of the court decision sent included only the reference to the statute of limitations and not the entire analysis regarding the lack of jurisdiction of the regular criminal court, as it was sufficient to assert that this case was completely outdated, both regarding the aspect of the complainant's pre-trial detention and regarding the aspect of the non-inclusion of the outcome of the criminal prosecution, for which nothing at all was mentioned in the contested publications. Also, in the complainant's memorandum, it is stated that "the company unnecessarily cites the analysis of the Article 29 Working Party regarding the examination of whether the data is accurate and regarding the obligation of the data subject to justify why the data is not accurate, while in the present case under consideration, the right to be forgotten applies not to 'inaccurate' data, as the applicant does not dispute that he was indeed detained. The data is accurate. The problem they present is that they are not updated, and it is one thing for the data to be inaccurate and another for the data in question to be accurate but not updated. That is why the GDPR in Article 5 refers on the one hand to accurate data and on the other hand to the fact that the data must be kept up to date. These are two different cases" and the applicant has no obligation to indicate the content of the missing update, but simply needs to report and prove that the data is not updated, that is, that ... years have passed without any mention in the postings of the outcome of the case. 4. The company, in its memorandum, states that it will delete a number of postings submitted on ... and ..., meaning that 3 months have passed since the first date and 2 months since the second while

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The justification for the delay due to Covid-19 is not lawful, as well as due to the large number of requests, since while the requests may have been more numerous, they were all based on the exact same legal basis and concerned precisely the same issue identified by the initial requests of ..., namely postings that referred to the incident of the applicant's pre-trial detention and prosecution, without being accompanied by a mention of the acquittal judicial decision for the applicant. The complainant had also submitted complaint no. G/EIS/1538/03-03-2021 against Google, in which it is stated that the complainant submitted to ... requests for the deletion of sixty-three (63) "links-results from the search of his name, which present him as involved in a criminal case ... and detained without mention of his acquittal and in violation of Article 5 paragraph 1 item d of the General Regulation 2016/679, according to which personal data must be accurate and, when necessary, must be updated," providing the Authority with Decision ... of the Three-Member Court of Appeals for Felonies. In its response letter no. G/EIS/4057/18-06-2021, the company states that, regarding the requests

from ... of the complainant, Google provides users with several methods for submitting their requests, so that the relevant process is easy and effective for all users. Specifically, Google, through the special online form https://www.google.com/webmasters/tools/legalremoval-request?complaint_type=rtbf&visit_id=637590063287314128-3790942157&hl=el&rd=1, which is available in the Greek language, provides the possibility to submit a request with an unlimited number of characters, in such a way that any user, including the complainant, can copy ("copy-paste") even the entire text of the judicial decision invoked by him into the relevant field. The only limitation in this form is found in the field for submitting the URLs for which removal is requested, where it specifically states, "You may enter one URL per line (Up to 1000 lines)." Thus, the complainant not only had the opportunity to elaborate on his requests to the extent he desired and using an unlimited number of words in the relevant available field of the form, which has no restrictions, but also had the option to include all the URLs for which he requested removal in a single form instead of submitting completely abusive multiple dozens of separate requests within a period of just three months [...] and the complainant had the alternative option to submit the invoked decision to Google via a link (Google Drive), or even to directly address his request via email to the Data Protection Officer (DPO) of Google, with all relevant documents regarding the request, as he ultimately did." Regarding the second complaint, beyond what had already been mentioned in its letter no. G/EIS/2781/23-04-2021 to the Authority, Google states that, concerning the links listed in the sixty-two new requests, it has already informed that it will take measures to remove them from the results of the Google search engine based on the complainant's name and only refused the deletion of the following link Regarding this link, which pertains to a comment under a post on the said website, the company invokes - in conjunction with what it states in the aforementioned letter no. G/EIS/2781/23.04.2021 to the Authority - the Guidelines of the Article 29 Working Party and the Costeja Decision, and claims that the deletion from the search results is not permitted in the case at hand based on the invoked right to be forgotten, as it appears that the conditions for substantiating a deletion request based on this right are not met, since the information contained therein relates to the professional life of the complainant, noting that the comment does not refer to the complainant either nominally or based on any element of his personality (e.g., professional capacity), and - consequently - does not connect him with the ..., and based on the available information, the company concludes that the information is recent, updated, accurate, and there continues to be public interest in accessing it. The complainant had countered this claim in the aforementioned memorandum from ... stating that "in the comments that are an integral part of the post, as anyone seeking information inevitably reads them.

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Based on the name "A", the following outdated data regarding the applicant is included, which relates him to the aforementioned criminal prosecution from which he has been acquitted: "...". Furthermore, the company notes that, considering that at the time of filing the complaint the deadline of Article 12 paragraph 3 GDPR subparagraph b had not yet expired, and already with its memorandum it responded in a timely manner to all requests of the complainant, the complaint before the Authority is inadmissible.

Finally, the complainant requested a copy of the documents from ... regarding the company's opinions, which was provided to him, and he did not submit any opinions beyond those mentioned above from ...

Subsequently, the Authority summoned the aforementioned companies and the complainant, respectively, as legally represented, to attend, via teleconference, the plenary session of the Authority on Tuesday, 05-07-2022, in order to discuss the aforementioned complaints. During this session, the request for postponement submitted by the complainant was discussed, which was accepted by the Plenary. Thereafter, the Authority summoned again with the documents no. Γ/ΕΞΕ/2210/07-09-2022 and Γ/ΕΞΕ/2208/07-09-2022 the aforementioned involved parties respectively, as legally represented, to attend the plenary session of the Authority on Tuesday, 13-09-2022, in order to discuss the aforementioned complaints. In this session, the complainant's attorney Basilios Sotiropoulos (AMDSA ...) and on behalf of Google LLC, the attorneys Charikleia Daouti (AMDSA ...) and Evangelia Tsirigoti (AMDSA ...) were present. The attendees presented their views and were given a deadline for the

submission of memoranda. Subsequently, the complainant and the company submitted the documents no. Γ/ΕΙΣ/10564/29-09-2022 and Γ/ΕΙΣ/10595/30-09-2022 respectively. The complainant reiterated what he had stated in the documents submitted to the Authority, emphasizing that “at no point on the website of the entity in question are the contact details for its DPO provided. According to Article 37 paragraph 7, the data controller publishes the contact details of the Data Protection Officer [...]. The contact details of the DPO of the entity in question are not published in the 'Request Form for the Deletion of Personal Data' and we were unable to locate them anywhere else on the website of the entity in question.” The complained company reiterated what it had stated in the initial memorandum, emphasizing that both complaints were submitted prematurely and abusively, as before the respective response deadlines expired, the company fully satisfied the requests of the complainant and additionally provided as relevant i. an affidavit from Google's Policy Specialist, in which she states that “in order to ensure the protection of data for users, Google removed the option to attach documents to deletion request forms, to prevent the transmission of sensitive information in an unsecured environment outside of Google's premises and to protect the data that may be processed by employees working from home,” ii. a copy of the websites “https://support.google.com/policies/answer/9581826?hl=en-GB&visit_id=637986647862684826-125515017&rd=1#zippy=%2Creport-content-or-information%2Cget-help-with-privacy-related-questions%2Ccontact-googles-data-protection-office” and “https://support.google.com/policies/contact/general_privacy_form”, through which Google provides the tools for its service users to contact its DPO, as the company states, and iii. the decision of the First Instance Court of Athens ... regarding the inadmissibility of claims from the search engine regarding the filtering method of the information it includes.

The Authority, after examining the case file, having heard the presenters and the clarifications from the assistant presenter, who attended without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Because, from the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019

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(Official Gazette A' 137) it is established that the Authority has the competence to supervise the implementation of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.

2.

Because Google LLC, based in the United States of America, with its letter no.

Γ/ΕΙΣ/10060/14-12-2018, informed the Authority that, although Google Ireland will be the data controller for the user data collected and processed when users interact with Google's services - including data collected through the Google search engine, where users choose to save activity data or search history in their accounts - Google LLC will continue to be the data controller for the indexed content of the Google search engine and manage the deletion process within the framework of the right to be forgotten. Therefore, in the case under consideration, the purpose and means of processing to satisfy the right to erasure (to be forgotten) as per Article 17 of the GDPR are fully determined by Google LLC, as it states, whose establishment is outside the European Union. Consequently, although this specific activity concerns data subjects located within the territory of the Union, since Google LLC does not have a main establishment in the Union for the activity under consideration, the "one-stop-shop" mechanism established by the GDPR as per Articles 56 and 60 does not apply, and thus, according to the provisions of Articles 55 paragraph 1, 2 paragraph 1, and 3 paragraph 2 of the GDPR and 13 paragraph 1 item (g) of Law 4624/2019, the Authority has the competence to address the complaints of A.

3.

Because the activity of Google Hellas/Athens (GOOGLE HELLAS Internet Applications Single Member Limited Liability Company) is the provision of marketing services to Google Ireland, the complaint regarding the rejection of the request for the deletion of links in the context of satisfying the right to be forgotten is examined only concerning Google LLC as the data controller of the indexed content of the

Google search engine.

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4.

Because according to Article 4 item 7 of the GDPR, the "data controller" is "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data," as this provision has been interpreted in detail by the CJEU and the Council of State.

5.

Because Article 12 of the GDPR provides, among other things, that: "[...] 2. The data controller facilitates the exercise of the rights of data subjects provided for in Articles 15 to 22. In cases provided for in Article 11 paragraph 2, the data controller shall not refuse to act on the request of the data subject to exercise their rights under Articles 15 to 22, unless the data controller demonstrates that it is unable to verify the identity of the data subject. 3. The data controller provides the data subject with information on the action taken in response to the request under Articles 15 to 22 without undue delay and in any event within one month of receiving the request. This period may be extended by two further months where necessary, taking into account the complexity of the request and the number of requests. The data controller shall inform the data subject of any such extension within one month of receiving the request, as well as the reasons for the delay. (...) 4. If the data controller does not act on the request of the data subject, the data controller shall inform the data subject without undue delay and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy. (...)".

6.

Because according to Article 17 paragraph 1 of the GDPR, "the data subject has the right to request the data controller to erase personal data concerning them without undue delay and the data controller is obliged to erase personal data without undue delay, if one of the following grounds applies: a) the personal data are no longer

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necessary in relation to the purposes for which they were collected or otherwise processed, [...], c) the data subject objects to the processing pursuant to Article 21 paragraph 1 and there are no compelling legitimate grounds for the processing or the data subject objects to the processing pursuant to Article 21 paragraph 2, d) the personal data has been processed unlawfully, [...]". In paragraph 3 of the same article, it is stated that "paragraphs 1 and 2 do not apply to the extent that processing is necessary: a) for the exercise of the right to freedom of expression and information [...]"

7. Since according to the above Article 17 of the GDPR, as interpreted in substance by the Guidelines 5/2019 of the EDPB¹, the data subject has the right to request the data controller to erase personal data concerning them without undue delay and the data controller is obliged to erase personal data without undue delay, if one of the reasons mentioned in Article 17 of the GDPR applies. The EDPB² states that in the event that the erasure request is made for the third reason, namely that the data subject objects to the processing, then the GDPR provides stronger guarantees to data subjects than Directive 95/46, because the right to object under the GDPR does not limit the reasons on which data subjects can request erasure under Article 17 paragraph 1 of the GDPR. The data subject may object to the processing "on grounds relating to their particular situation," without needing to demonstrate "compelling legitimate grounds," as was required by Directive 95/46. The GDPR shifts the burden of proof and provides a presumption in favor of the data subject, obliging the data controller (in this case, Google) to prove the compelling legitimate grounds that make the processing absolutely necessary (Article 21 paragraph 1 GDPR). Consequently, when a search engine provider receives a deletion request based on the particular situation of the data subject, it is now obliged to erase the personal data, in accordance with Article 17 paragraph 1 point c of the GDPR, unless it can demonstrate that there are "compelling legitimate grounds" for including the specific search result, which in conjunction with Article 21 paragraph 1 constitutes "compelling legitimate grounds (...) which override the interests, rights, and freedoms of the data subject."

8. Since, according to the case law of the Court of Justice of the European Union, the data subject has the right to have information related to them no longer linked to their name through the list of results generated following a search conducted based on the name of a natural person³ and furthermore, such a search may result in users being able to obtain through the list of results a systematic overview of the information available online concerning that person, which provides users with the ability to form a more or less detailed profile of the data subject⁴, which pertains to the private life of the data subject⁵.

9. Since, moreover, according to the case law of the Court of Justice of the European Union, it is incumbent upon the person requesting the deletion of links, in the case of alleged inaccuracy of the indexed content, to prove the manifest inaccuracy of the information contained in the relevant content by providing the evidence that can reasonably be expected to be available for them to seek, in light of the

1 Guidelines 5/2019 of the European Data Protection Board regarding "the criteria governing the right to be forgotten under the GDPR in the context of search engines."

2 See Guidelines 5/2019 paragraph 27.

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circumstances of the specific case, in order to prove this evident inaccuracy.

10.

Furthermore, according to the case law of the Court of Justice of the European Union, "[...] although the rights protected by Articles 7 and 8 of the Charter of Fundamental Rights of the European Union generally prevail over the legitimate interest of potential internet users in accessing the information in question, this balancing may depend on the critical circumstances of each case, particularly the nature of the information in question and its sensitive character for the privacy of the data subject, as well as the public interest in having access to this information, an interest that may vary depending, among other factors, on the role that the data subject plays in public life [judgments of May 13, 2014, Google Spain and Google, C-131/12, EU:C:2014:317, para. 81, and of September 24, 2019, GC et al. (Removal of links to sensitive data), C-136/17, EU:C:2019:773, para. 66]. Specifically, when the data subject plays a role in public life, they must exhibit a greater degree of tolerance, given that they inevitably and knowingly expose themselves to public scrutiny (see ECtHR judgment of October 6, 2022, Khural and Zeynalov v. Azerbaijan, CE:ECHR:2022:1006JUD005506911, § 41 and the case law cited therein)."

11.

According to the case law of the Authority, the reasons for submitting a request for the removal of a link to a search engine service provider, such as Google, must be substantiated.

12.

According to Article 37(7) of the GDPR, the data controller publishes the contact details of the DPO, and as provided in the Guidelines of the Article 29 Working Party, the contact details of the DPO must include information that allows data subjects and supervisory authorities to easily contact the DPO, such as a postal address, contact telephone number, and/or email address.

13.

Regarding the first complaint concerning the requests of the complainant submitted to the company on ..., which involved fifteen (15) links, from the entirety of the case file, the hearing process, and the submitted memoranda, it appears that the company ultimately satisfied the request for the removal of fourteen (14) links contained therein. Furthermore, for the one link ..., the company states that "the relevant information pertains to criminal offenses for which there is public interest for historical reasons and is updated based on the latest developments of the events referred to. Based on the information we have, we conclude that the information is current, accurate, and there continues to be public interest in accessing it," and the complainant stated to the Authority that they are satisfied with the company's response. In a search by the Authority on 05-05-2023, the said link does not appear as a result in the Google search engine based on the complainant's name, and also, the same link leads to the update that "the article was not found." Therefore, regarding the substance of the requests for the

removal of the fourteen (14) links contained in the complainant's first complaint, which have been satisfied as stated above, as well as regarding the request for the removal of the aforementioned fifteenth link, the complaint is no longer relevant and there is no reason for further examination.

14.

Regarding the complainant's request for removal, the only link, ..., which the company refuses to remove, out of the total of seventy-four (74) links, the removal of which was requested by the complainant, contains a reader's comment on the article that is presented below the text, and although the complainant's name is not mentioned in this comment, the connection to the article is integral for the reader of the post and, therefore, results in anyone searching for information based on the complainant's name being led to this result, the

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which consists of the article along with the comment that, as a single entity, constitutes information related to the data subject, and the average Internet user can perceive that the said comment refers to the complainant. This information pertains to the case of ..., for which the complainant was detained and subsequently the ... acquittal decision was issued, concerning the links for which the company had already satisfied the complainant's requests. Therefore, the Authority concludes that the company unlawfully refuses to satisfy the complainant's right to erasure in accordance with Article 17. And although following the Authority's search on 05-05-2023 using the complainant's name in the Google search engine, the said link did not appear as a result, the company, however, has an obligation to confirm that the link in question has been deleted/removed from the results of the Google search engine.

15.

Because, following the above, the Authority proceeds to examine the claims of the complainant regarding the exercise of the rights of data subjects concerning (i) the ability to attach documents, and (ii) the use of a sufficient number of characters in the "Request for Removal of Personal Data Form." Specifically, the complainant states that it is not possible to attach documents and that there is a text limit of one thousand (1000) characters, which restricts the right to erasure, as the data subject is not allowed to include the necessary documents and to detail to the company the legality issues that necessitate the removal of the content. In a review of the link mentioned in the complainant's Memorandum https://www.google.com/webmasters/tools/legal-removalrequest?complaint_type=rtbf&visit_id=637530114519899199-3353308110&hl=el&rd=1, which contains the electronic form in question, it appears that in the "Reasons for Removal" field of the link, where the applicant is asked to explain "(1) how the personal data identified above relates to the person concerned by this specific request and (2) why you believe that the personal data should be removed," there is the possibility of entering text with an unlimited number of characters. The limitation in the form in question is found in the field for submitting the links for which removal is requested, where it specifically states, "You may enter one URL per line (Up to 1000 lines)." Therefore, regarding the permitted number of characters, it does not appear that the submission of the data subject's right to erasure, specifically that of the complainant, is restricted. On the contrary, regarding the ability to attach documents, the company states that "the complainant had the option, alternatively, to submit the cited decision to Google via a link (Google Drive), or even to directly address their request via email to Google's Data Protection Officer (DPO), with all relevant documents regarding the request, as they ultimately did," adding to the above argument regarding the large number of characters in the "Reasons for Removal" field that the complainant "could copy-paste even the entire text of the cited court decision into the relevant field." Additionally, in its letter no. Γ/ΕΙΣ/10595/30-09-2022, the company further states that "Google suspended the ability to submit attached documents during the pandemic, due to the extraordinary and particular needs that had arisen," providing an affidavit from Google's Policy Specialist, in which it states that "in order to ensure the protection of data for users, Google removed the option to attach documents in removal request forms, in order to prevent the transmission of sensitive information in an unsecured environment outside Google's facilities and to protect the data that may be processed by employees working from home." However, according to Article 12 of the GDPR referenced in Recital 5, and given that ensuring the transmission of "sensitive information" in an unsecured environment can

also be achieved through different means, without prohibiting the submission of attached documents, the request submission form that the data subject fills out must provide them with all the possibilities for submitting a complete request, if it concerns the exercise of a right under the GDPR. A full and complete exercise of a right cannot be conceived when the data subject is obliged to use alternative routes, such as the methods for submitting documents mentioned by Google.

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action that results in delay and creates obstacles in the exercise of the right. Therefore, in the Authority's judgment, since the company does not provide the option to attach a file to the Application Form for the Deletion of Personal Data, although documents may be required as a necessary element of documentation, it does not sufficiently facilitate the exercise of the subjects' rights and violates Article 12(2) of the GDPR. Consequently, it is required that the option to attach a file for the documentation of what the subject claims in the Application for the Deletion of Links be provided henceforth.

16.

Since the Authority finds that in the case under examination, the complainant was not given the opportunity to attach to the requests submitted to the company on ... the court decision, which subsequently proved to be a documentation element that led to the deletion of the links, and therefore, the exercise of the right was not carried out properly, not due to the complainant's fault—apart from their omission to include the term "AA," in addition to the term "A" in the aforementioned application—but due to the procedure applied by the company. Therefore, the company's claim that the first complaint is inadmissible because it was submitted before the deadline of Article 12(3) of the GDPR is rejected, given that the complainant resubmitted the deletion requests to the company's Data Protection Officer on ..., notifying the exonerating court decision, to which the company responded on ...

17.

Since the company informed the complainant who submitted a deletion request with an automated message about the possibility that "more time" may be needed to respond to the request, citing the Covid-19 pandemic. However, from Article 12(3) of the GDPR, according to which the data controller must respond to the exercise of the subject's right in any case within a deadline of one month from the receipt of the request, which may be extended by two more months due to the complexity of the request and the number of requests, it does not emerge that the pandemic constitutes a reason for the extension of the satisfaction of the subjects' rights. In this regard, the Authority has accepted that "the obligation to satisfy the rights exercised by data subjects remains intact during the performance of work remotely," while "regarding any delays in responding to requests that constitute the exercise of rights by the subjects, particularly in this case from employees, it is noted that, on the one hand, no provision of the GDPR and national legislation provides for a temporary suspension of the relevant deadlines and obligations to satisfy the rights, and on the other hand, it is the responsibility of the data controller to internally document the reasons for delays or non-satisfaction of the exercised rights, taking into account both the principle of law 'no one is obliged to do the impossible' and the object and conditions of the activity of the data controller that may be burdened by the extraordinary condition (such as hospitals in the case of the pandemic). In any case, any invocation of reasons related to delays, both against the data subjects and against the Authority in the exercise of its supervisory powers, must be particularly documented and not pretextual, given that the required technical and organizational measures must have already been taken and applied before the commencement of the processing of personal data." In the case under examination, from the documents in the file, it appears that the company sends a general automated message citing the pandemic, regardless of the subject of the request and the data related to its satisfaction, without examining each request separately to determine whether, based on the circumstances present in the specific case, it is necessary to extend the deadline set by the aforementioned provision for its satisfaction and without specifically mentioning in this message the time for the extension of the deadline. In the case under examination, the company claims that the complainant submitted a total of sixty-three (63) requests in separate submission forms

for each link on ... and ..., which significantly complicated and delayed its work.

10 See Decisions 5/2020 and 32/2021 of the Authority available on its website.

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and that the requests were submitted abusively because they are repetitive and not all of them were submitted in a single form. This claim by the company is based on a mistaken interpretation because each request concerned a different link and, therefore, these requests are not repetitive and, in any case, the claim is unfounded because the submission of these requests cannot be characterized as abusive. Given these facts, the aforementioned notification, which is provided in a horizontal and automated manner and is not personalized or specifically justified, does not meet the terms set out in Article 12(3) of the GDPR and, consequently, constitutes a violation of this provision.

18.

Considering the possibility of communication of the data subject with the DPO of the company, following the Authority's search of the links provided by the company in its letter no.

G/EIS/10595/30-09-2022, it was found that there is a link leading to a form to enable the data subject to contact the office of the DPO of the company, although the contact details of the DPO are not provided, which must henceforth be made available in a clear location on its website, even though the data subject is given the opportunity to contact the office of the DPO of the company in the aforementioned manner. Therefore, the Authority finds that Google LLC violates Article 37(7) of the GDPR due to the non-publication of the contact details of the DPO, in accordance with what is stated above in paragraph 12.

19.

Therefore, from the entirety of the file and the hearing process, it appears that the company has violated Articles 12(2) and (3), 17, and 37(7) of the GDPR.

Based on the above, the Authority unanimously decides that corrective measures, as mentioned in the operative part, must be imposed on the respondent, as the data controller.

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FOR THESE REASONS

The Authority

A. Finds that Google LLC, as the data controller, has violated Article 12(2) of the GDPR and orders Google LLC, pursuant to Article 58(2)(c) of the GDPR, to provide data subjects with the ability to attach a file to substantiate their claims when exercising their rights under the application of the GDPR, in accordance with the above paragraph 15.

B. Finds that Google LLC, as the data controller, has violated Article 12(3) of the GDPR and orders Google LLC, pursuant to Article 58(2)(c) of the GDPR, to cease the practice of sending automated general non-personalized informational messages to data subjects, in accordance with the above paragraph 17.

C. Finds that Google LLC, as the data controller, has violated Article 37(7) of the GDPR and orders Google LLC, pursuant to Article 58(2)(d), to publish the contact details of the Data Protection Officer in a clear location on its website, in accordance with the above paragraph 18, within two (2) months from the notification of this decision.

D. Orders, pursuant to Article 58(2)(c) of the GDPR, Google LLC, as the data controller, to immediately remove the link referred to above in paragraph 14 as a result of a search criterion based on the name of the complainant in the Google search engine.

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The President

The Secretary

Konstantinos Menoudakos

Eirini Papageorgopoulou